

24NWCV02281 24NWCV02281

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#19

TOMALA v. SG

REALTY GROUP, INC.

CASE NO.: 24NWCV02281

HEARING: Wednesday, September
2, 2026, at 9:30 AM

I.

Defendant SG REALTY GROUP, INC's Motion for
Summary Judgment is DENIED.

II.

Defendant SG REALTY GROUP, INC's Motion for
Summary Adjudication is DENIED.

Moving Party to give notice.

Background

On July 25, 2024, Plaintiff IVONNE TOMALA ("Plaintiff")
filed this premises liability action against Defendants SG REALTY GROUP, INC.
("Defendant") and Does 1 to 100, inclusive.

Plaintiff's Complaint asserts the following causes of
action:

(1) Negligence

and

(2) Premises

Liability

Plaintiff alleges, in pertinent part, that Plaintiff suffered major bodily injuries when she slipped and fell on a dangerous condition, specifically, wet stairs of the subject premises Defendant owned, maintained and rented to Plaintiff. (Complaint at p. 5.)

On June 8, 2026, Defendant brought the instant motion for summary judgment arguing that Plaintiff's Negligence and Premises Liability fail because there is no evidence that Defendant had notice of any dangerous condition.

Legal Standard

The purpose of a motion for summary judgment "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established." (Code Civ. Proc., § 437c(p)(2).) "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the

cause of action or a defense thereto.” (Id.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Med. Ctr. (2008) 159 Cal.App.4th 463, 467.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, supra, 159 Cal.App.4th at p. 467; see also Code Civ. Proc., § 437c, subd. (c).)

Negligence and Premises Liability

“To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff’s damages or injuries. (Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 662.)

Premises liability shares its elements with negligence: duty, breach, causation, and damages. (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) Premises liability is simply a species of negligence “grounded in the possession of [a] premises and the attendant right to control and manage the premises.” (Kesner v. Superior Court (2016) 1¿Cal.5th 1132, 1158, quotation marks omitted.) The theory relies on a crucial premise: that the defendant in a premises liability action owns or controls the property on which a plaintiff’s injury took place. (Martin v. Gladston (2023) 96 Cal.App.5th 681, 689 [collecting precedents]; Kinsman v. Unocal Corp. (2005) 37 Cal.4th 659, 672 [“proper test” is reasonable care in “management of [one’s] property”]; Soto v. Union Pacific Railroad Co. (2020) 45 Cal.App.5th 168, 177.)

Dangerous Condition and Notice

“The owner of premises is under a duty to exercise ordinary care in the management of such premises to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence.” (Brooks v. Eugene Burger Management Corp. (1989)

215 Cal.App.3d 1611, 1619; *Annocki v. Peterson Enterprises, LLC* (2014)
232 Cal.App.4th 32, 37.) “Liability
is particularly appropriate where the landowner has actual
knowledge of the danger, e.g., where he has created the condition.’
[Citation.]” (*Robison v. Six Flags Theme Parks Inc.* (1998)
64 Cal.App.4th 1294, 1304.)

To establish liability for negligence, “[t]here
must be some evidence . . . to support the conclusion that the condition had
existed long enough for the proprietor, in the exercise of reasonable care, to
have discovered and remedied it.” (*Girvetz v. Boys’ Market* (1949)
91 Cal.App.2d 827, 829; *Ortega, supra*, 26 Cal.4th at p.
1206 [the owner must have had actual or constructive knowledge of the dangerous
condition or have had the ability, through the exercise of ordinary care, to
discover it, and sufficient time to correct it].) The plaintiff has the
burden because “shifting the burden to defendant would, contrary to existing
negligence law, permit an inference of negligence to be drawn against the owner
based solely on the fact that the fall or accident occurred.” (*Ibid.*)

Where a plaintiff produces evidence from which a reasonable
inference can be drawn that the dangerous condition was created by defendant or
its employees, defendant is charged with notice of the dangerous
condition. (*Getchell v. Rogers Jewelry* (2012) 203
Cal.App.4th 381, 382.) However, “[t]he plaintiff need not show
actual knowledge where evidence suggests that the dangerous condition was
present for a sufficient period of time to charge the owner with constructive
knowledge of its existence.” (*Ortega, supra*, 26
Cal.4th at p. 1206.) “The exact time the condition must exist before
it should, in the exercise of reasonable care, have been discovered and
remedied, cannot be fixed, because, obviously, it varies according to the
circumstances.” (*Louie v. Hagstrom’s Food Stores* (1947)
81 Cal.App.2d 601, 608.) Typically, the question of whether a condition
existed so long as to be discoverable within a reasonable time is a question of
fact to be decided by the jury. (*Hatfield v. Levy Bros.* (1941)
18 Cal.2d 798, 807; *Tuttle v. Crawford* (1936) 8 Cal.2d 126,
130; *Rothschild v. Fourth & Market St. Realty Co.* (1934)
139 Cal.App. 625, 627.)

However, if there is no substantial evidence from which it
can be reasonably inferred that the condition existed for a sufficient period

of time to charge the defendant with constructive notice of its presence and to remedy the condition, a defendant may be entitled to judgment as a matter of law. (Perez v. Ow (1962) 200 Cal.App.2d 559, 562.)

Discussion

Defendant offers the following evidence to show there is no triable issue regarding notice because Defendant did not have notice of a dangerous condition on the subject stairs prior to Plaintiff's fall:

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Prior to Plaintiff's alleged fall on January 5, 2023, Defendant had no notice that the steps in the subject stairs were in a dangerous condition. (Undisputed Material Fact "UMF" No. 4.)

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Prior to Plaintiff's alleged fall, Defendant never received any notice of persons falling on the subject stairs. (UMF No. 5.)

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Prior to Plaintiff's alleged fall, Defendant never received any complaints concerning the condition of the subject stairs. (UMF No. 6.)

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Prior to Plaintiff's alleged fall, Plaintiff never made any complaints regarding the subject stairs. (UMF No. 7.)

Defendant met its initial burden to prove there is no triable issue regarding notice.

Plaintiff offers the following evidence in opposition:

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Defendant's Person Most Knowledgeable ("PMK") Ms. Gonzales testified that prior to the subject incident, she knew that the subject stairs would get wet when it would rain. (Plaintiff's Undisputed Material Fact "PUMF" No. 9.)

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Defendant's PMK Ms. Gonzales testified that when things get wet they can get slippery. (Id.)

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At or around the time of the incident, Defendant would do "water sweeping" of the driveway. While they did this "water sweeping" they would use caution tape to warn people of water so they can be careful and not slip because when things get wet, they get slippery. (PUMF No. 10.)

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At or around the time of the incident, Defendant's inspection system consisted of property manager Isabel Viquez doing alleged daily walk throughs, the owner doing random walkthroughs, office staff doing yearly walkthroughs, and random inspections by a senior housing authority. (PUMF No. 11.)

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Ms. Isabel Viquez has no knowledge, skill, training, or experience in property inspections and the only tool provided for the purpose of her "walkthroughs" is a broom. (PUMF No. 12.)

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There are no written rules or procedures regarding how to inspect the subject stairs and the PMK didn't know if it was ever taught orally. (PUMF No. 15.)

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The only inspections that would be done of the subject stairs would be sweeping done by the manager Isabel Viquez who has no knowledge, training, skill or experience in property inspection. (PUMF No. 16.)

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Defendant has no knowledge one way or the other if the South Gate Housing inspectors have ever inspected the subject stairs. (PUMF No. 19.)

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The Subject Property has never been inspected by a licensed property inspector. (PUMF No. 20.)

The Court finds there is a triable issue regarding notice for the following reasons.

First, it is undisputed that it was raining at the time of the subject fall. (PUMF No. 1.) Defendant's PMK admitted she knew the subject stairs would get wet when it rained. Defendant's PMK testified that when things get wet, they can be slippery. Further, when Defendant performed "water sweeping" of the driveway, Defendant used caution tape to warn people of the water so they would not slip.

Taken together, Defendant acknowledged that the subject stairs got wet from rain and Defendant understands wet conditions can be a hazard, as evidenced by Defendant's use of caution-tape during "water sweeping."

Second, a landlord must conduct reasonable periodic inspections of rental property whenever the landlord has the legal right of possession. Before giving possession of leased property to a tenant a landlord must conduct a reasonable inspection of the property for unsafe conditions and must take reasonable precautions to prevent injury due to the conditions that were or reasonably should have been discovered in the process. The inspection must include common areas under the landlord's control. (CACI 1006.)

In determining whether Defendant should have known of the dangerous condition, the jury must decide whether, under all the circumstances, the condition was of such a nature and existed long enough that Defendant has sufficient time to discover it and, using reasonable care to protect against harm from the condition or adequately warn of the condition. (CACI 1011.)

Defendant must conduct reasonable inspections of the property to discover unsafe conditions. If an inspection is not made within a reasonable time before the accident, this may show that the condition existed long enough so that a Defendant using reasonable care would have discovered it. (CACI 1011.)

If a plaintiff can show the owner did not make an inspection within a time period that was reasonable under the circumstances, the plaintiff could raise the inference that the defective condition existed long enough so that the failure to discover it was not reasonable. (Ortega v. Kmart Corp. (2001)

26 Cal.4th 1200, 1209.)

Here, Plaintiff provided evidence that untrained personnel performed inspections, that Defendant has no knowledge if South Gate Housing inspectors ever inspected the subject stairs, and that no licensed inspector inspected the subject stairs. Thus, the Court finds there is enough evidence that a reasonable jury could find Defendant had constructive notice that the wet staircase could be dangerous.

Indeed, Plaintiff's evidence supports an inference that the staircase may not have been inspected within a reasonable period, or by personnel with adequate training. Thus, Plaintiff may raise the inference that the failure to discover the wet staircase was not reasonable as untrained personnel performing inspections increases the likelihood that dangerous conditions go undiscovered, supporting a constructive notice inference under Ortega.

Further, it is ordinarily a question of fact for the jury whether, under all the circumstances, the defective condition existed long enough so that it would have been discovered by an owner who exercised reasonable care. (Ortega, supra, 26 Cal. 4th at p. 1209.)

While Defendant offers evidence there were no complaints regarding the subject staircase before Plaintiff's fall, there is no evidence to show that the staircase was ever adequately inspected. At the very least, Plaintiff's inspection-deficiency evidence permits a constructive notice inference that presents a jury question.

Indeed, because Defendant knew the stairs became wet when it rained, understood that wet surfaces are slippery, and used caution tape elsewhere on the property to warn of wet conditions, a reasonable landlord should have anticipated wet stairs and inspected them during or after rain.

Thus, Defendant's Motion for Summary Judgment or in the alternative, Summary Adjudication is DENIED.

Conclusion

Defendant's Motion for Summary Judgment is DENIED. Defendant's Motion for Summary Adjudication is DENIED.

Defendant's Objections to Plaintiff's Additional Facts Nos. 2 and 3 are SUSTAINED.
(Relevance).

Defendant's Objections to Plaintiff's Additional Facts Nos. 7, 9-10,
12-21 are OVERRULED.